

181, 187.) Whether a defendant healthcare provider breached a duty owed to the plaintiff patient rests on whether that provider complied with the standard of care in treating the patient. (*Munro v. Regents of the University of California* (1989) 215 Cal.App.3d 977, 983.) The requisite standard of care is determined by the applicable standard then existing in a particular professional community. (*Jambazian v. Borden* (1994) 25 Cal.App.4th 836, 844.) Specifically, a health care provider is required only to exercise “that reasonable degree of skill, knowledge, and care ordinarily possessed and exercised by a member of the medical profession under similar circumstances.” (*Munro, supra*, 215 Cal.App.3d at pp. 983-84.)

Here, Defendant fails to meet the initial burden of proof to show Plaintiff cannot establish a claim for professional negligence. “In professional malpractice cases, expert opinion testimony is required to prove or disprove that the defendant performed in accordance with the prevailing standard of care [citation], except in cases where the negligence is obvious to laymen. [Citation.]” (*Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 523; *Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 741 (*Garibay*).) In order to testify as an expert in a medical malpractice case, a person must have enough knowledge, learning and skill with the relevant subject to speak with authority, and he or she must be familiar with the standard of care to which the defendant was held. (Evid. Code, § 720 (a); *Avivi v. Centro Medico Urgente Med. Ctr.* (2008) 159 Cal.App.4th 463, 467.) The expert opinion must be supported by reasoned explanation. (*Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 525 [“The standard necessary on summary judgment “is not satisfied by laconic expert declarations which provide only an ultimate opinion, unsupported by reasoned explanation.”].) (*Id.*)

While Defendant’s expert Dr. Alan Shelhamer is qualified, his expert opinion, however, is not supported by reasoned explanation. (*Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 525.) After reciting Plaintiff’s dental history—which is substantially similar to what Defendant’s statement of facts and the “patient notes” for Plaintiff state—Dr. Shelhamer opines in conclusory terms that Defendant did not violate any applicable standard of care.

“In professional malpractice cases, expert opinion testimony is required to prove or disprove that the defendant performed in accordance with the prevailing standard of care [citation], except in cases where the negligence is obvious to laymen. [Citation.]” (*Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 741.)
“Although hospital and medical records are hearsay, they can be

admitted under the business records exception to the hearsay rule.” (*Id.* at 742.) Evidence Code section 1271 states the business records exception to the hearsay rule: “Evidence of a writing made as a record of an act, condition, or event is not made inadmissible by the hearsay rule when offered to prove the act, condition, or event if:

“(a) The writing was made in the regular course of a business;

“(b) The writing was made at or near the time of the act, condition, or event;

“(c) The custodian or other qualified witness testifies to its identity and the mode of its preparation; and

“(d) The sources of information and method and time of preparation were such as to indicate its trustworthiness.”

(*Id.*)

Without testimony providing for authentication of such medical records, an expert’s has no evidentiary basis. (*Id.* at 742.)

“Consequently his expert medical opinion on whether defendant Hemmat met the standard of care had no evidentiary value.” (*Id.*)

An “expert opinion may not be based on assumptions of fact that are without evidentiary support or based on factors that are speculative or conjectural, for then the opinion has no evidentiary value and does not assist the trier of fact.” (*Id.* at 742-743.)

“Although experts may properly rely on hearsay in forming their opinions, they may not relate the out-of-court statements of another as independent proof of the fact.” (*Id.* at 743.)

Here, the court notes that Defendant does not offer a declaration explaining her version of events from her own personal knowledge. Nor does Defendant cite to any of her own deposition testimony regarding what occurred on August 6, 2021. Instead, Defendant provides a general declaration that merely states in conclusionary form:

3. I have reviewed the records to be lodged in support of this motion and attest that these include true and correct copies of my office’s (Oceanic Dental) original electronic medical records and imaging for Plaintiff ROBERT SANDERS.

4. These records were prepared by myself and my staff in the regular course of a business at or near the time of the act, condition, or event described therein.

5. I am qualified to testify to the identity and the mode of preparation of these records.

(Mvg. Pham Decl., ¶¶ 3-5.) This testimony is insufficient to qualify for the hearsay exception under Evid. Code 1271. Pham fails to specifically identify each category of documents she is authenticating, fails to describe how these records are recorded, stored and the mode of preparation (e.g., in writing, in a database, etc.), or the sources of information, the method, or the time of the preparation to indicate any trustworthiness. Pham does not describe any pattern or practice that is used, who the preparers are, and/or what Pham does to sure its trustworthiness. The entire basis of Defendant’s version of facts are the patient notes—there is no testimony with any person with personal knowledge that verifies the facts stated in those patient notes occurred. Further, the patient notes do not state with any specificity the timing of events of August 6, 2021—i.e., whether or not anesthesia was injected prior to the placement of the crown or, as Plaintiff testifies, injections occurred feverishly only after the crown was placed and Plaintiff expressed pain. Because the underlying dental records have not been properly authenticated, an expert’s opinion has not evidentiary basis. Defendant has failed to offer sufficient evidence to show that the underlying assumptions on which her expert bases his opinions are shown through admissible evidentiary support.

It is also unclear what the reasonable basis is for Shelhamer’s opinion. For example, he opines that the administration of anesthesia was within the proper standard of care. Given the general nature of Shelhamer’s testimony, however, while Shelhamer states that he has reviewed Plaintiff’s deposition testimony, it is unclear whether or not Shelhamer opines that injecting anesthesia after the placement of the crown is proper or not—i.e., whether or not his opinion was based on Plaintiff’s account of the version of events or not. If Plaintiff’s version and sequence of events is true, would Shelhamer still opine that Defendant’s conduct was within the standard of care and/or that Defendant’s conduct did not cause Plaintiff’s alleged injury. If yes, what is the reasonable basis for that testimony?

As such, the court finds that Defendant has failed to meet her initial burden on summary judgment. The motion is **DENIED**.

C. Evidentiary Rulings

Plaintiff’s objection to the propriety of Defendant’s separate statement is **OVERRULED**.

Plaintiff’s objections to the declaration of Krystal Pham are ruled on as follows:

		• SUSTAIN: 2, 3, 4 5 • OVERRULE: 6 Plaintiff's objections to the declaration of Robert J. Sanders are ruled on as follows: • SUSTAIN: 7, 8, 9 • OVERRULE: 3, 4, 5, 6 Plaintiff's objections to the declaration of Danielle Hicks is ruled on as follows: • SUSTAIN: 3 Plaintiff to give notice of each of the above rulings.
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